Deposition Transcript

Case Number: 606228/2023
Date: May 21, 2024

In the matter of:

STATE FARM MUTUAL AUTOMOBILE INS CO, et al. v AMIT MALHOTRA

AMIT MALHOTRA

CERTIFIED COPY

Reported by:
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Notary Public



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SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF NASSAU

STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY a/s/o JASWINDER SINGH and MANDEEP KAUR,	:	
Plaintiffs,	:	INDEX NO. 606228/2023
-against-	:	
AMIT MALHOTRA,	:	
Defendant.	:	

Deposition of the Defendant, AMIT MALHOTRA, taken by Plaintiffs Singh and Kaur, pursuant to Preliminary Conference Order, held via Zoom, on May 21, 2024, at 10:08 A.M., before RICHARD BOUDIN, a Shorthand Reporter and Notary Public within and for the State of New York.

A P P E A R A N C E S:

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(File No. BL15606)

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(File #23-00532239)

* * *

IT IS HEREBY STIPULATED AND AGREED by and between the attorneys for the respective parties herein, and in compliance with Rule 221 of the Uniform Rules for the Trial Courts:

THAT the parties recognize the provision of Rule 3115 subdivisions (b), (c), and/or (d). All objections made at a deposition shall be noted by the officer before whom the deposition is taken, and the answer shall be given and the deposition shall proceed subject to the objections and to the right of a person to apply for appropriate relief pursuant to Article 31 of the CPLR.

THAT every objection raised during a deposition shall be stated succinctly and framed so as not to suggest an answer to the deponent, and at the request of the questioning attorney, shall include a clear statement as to any defect in form or other basis of error or irregularity. Except to the extent permitted by CPLR Rule 3115 or by this Rule, during the

course of the examination, persons in attendance shall not make statements or comments that interfere with the questioning.

THAT a deponent shall answer all questions at a deposition, except (i) to preserve a privilege or right of confidentiality, (ii) to enforce a limitation set forth in an order of a Court, or (iii) when the question is plainly improper and would, if answered, cause significant prejudice to any person. An attorney shall not direct a deponent not to answer except as provided in CPLR Rule 3115 of this subdivision. Any refusal to answer or direction not to answer shall be accompanied by a succinct and clear statement of the basis thereof. If the deponent does not answer a question, the examining party shall have the right to complete the remainder of the deposition.

THAT an attorney shall not interrupt the deposition for the purpose of

communicating with the deponent unless all parties consent or the communication is made for the purpose of determining whether the question should not be answered on the grounds set forth in section 221.2 of these Rules, and in such event, the reason for the communication shall be stated for the record succinctly and clearly.

THAT failure to object to any question or to move to strike any testimony at this examination shall not be a bar or waiver to make such objection or motion at the time of the trial of this action, and is hereby reserved; and

THAT this examination may be signed and sworn to by the witness examined herein before any Notary Public, but failure to do so or to return the original of the examination to the attorney on whose behalf the examination is taken shall not be deemed a waiver of the rights provided by Rules 3116 and 3117 of the CPLR, and shall be controlled thereby,

and

THAT certification and filing of the original of this examination are waived; and

THAT counsel for Plaintiffs Singh and Kaur will supply counsel for Defendant Malhotra with a copy of this deposition, without charge.

* * *

A M I T M A L H O T R A,
called as a witness by the Plaintiffs Singh and Kaur, being first duly sworn by the Notary Public (Richard Boudin), was examined and testified as follows:

DIRECT EXAMINATION

BY MR. GRGAS:

Q Would you please state your name for the record.

A Amit Malhotra.

Q What is your present home address?

A 2 Sara Place, Hicksville, New York 11801.

Q Good morning, Mr. Malhotra.

A Good morning.

Q My name is Steven Grgas. I'm an attorney representing the plaintiffs today. I'm going to be asking you a series of questions.

Before we begin, I'm going to give you some preliminary instructions. As you can see, we're doing your deposition virtually today. During your deposition if you have any

issues with the device that you're using, connectivity, seeing us or whatever, please let us know right away, okay?

A Yes. I just want to let you know that your voice is going in and out.

Q Is this better?

A Yes. Thank you.

Q During the deposition, please make sure that your answers are verbal. You have to speak your answers. You can't nod your head, move your shoulders or say uh-huh. Just answer the questions verbally to the best of your ability, okay?

A Yes.

Q In a typical conversation, people tend to speak over each other. During this deposition, let me complete asking my question before you answer the question and I'll wait for your answer before I start my next question, okay?

A Okay.

Q So the transcript is clear, the court reporter can't take us both speaking at the same time.

If you don't understand one of my questions, please let me know and I'll rephrase it for you. If you provide an answer, I'm going to assume you understood my question.

A Okay.

Q If you need to take a break for any reason at any time, that's fine as long as there is no pending question. You need to answer any question before you can ask for a break.

Do you understand everything that I said so far?

A Yes.

Q The address that you provided, is that an apartment that you rent there, is it a home that you own?

A It's a home.

Q Who do you live there with?

A I live with my family and cousins.

Q You live with your "family and cousins"?

A Yes.

Q Is there a floor that you live

on or everybody lives in the same house?

A It's a house. It's a high ranch, up and down. It's a full house. Everybody have their own rooms and stuff. It's not an apartment. It's a house.

Q Okay. Who do you live with in that house?

A I live with my cousins. I have a son who comes and goes, and my cousins have kids and stuff.

Q How many cousins live in the house with you?

A I have two.

Q And you say your son lives there at times?

A Yes, yes.

Q How old is your son?

A He just turned 18.

Q Are you married, single, divorced or something else?

A Been divorced for a long time.

Q How long have you lived at that address?

A Since 2011.

Q Is this a place that you rent from your cousins?
A No. I own the house.
Q What is your date of birth, and for the record, we'll just put the year on, but you can give me your entire date of birth?
A (Witness complies.) 1978.
Q Where were you born?
A I was born in India.
Q Approximately when did you move to the United States?
A The year, 2000.
Q What's your first language, your primary language?
A Hindi.
Q Do you speak English fluently?
A I would like to say yes.
Q Can you read and write in English?
A Yes.
Q So if there is any issue with the language barrier, if you don't understand me, you have to let me know, okay?
A I will make sure, yes. Thank

you for bringing this up.

Q Are you comfortable with proceeding in English?

A Yes, yes.

Q What is your highest level of education?

A Bachelor's.

Q Where did you obtain the degree from?

A Syracuse University, New York.

Q What was the degree in?

A It was Computer Science.

Q And what year was that?

A 2005.

Q After obtaining your Bachelor's degree, did you attend any other universities or colleges?

A No.

Q Are you currently employed?

A I'm self-employed.

Q What are you self-employed as?

A I am trying to establish a business in technology. While my bills are being paid, I do part time Uber.

MS. FERRARO: He just wants to know what type of business you're involved in.

Q So, you're trying to start a tech company; am I correct?

A Trying to do something.

Q But you're also working part time as an Uber driver?

A Well, I get whatever income I get from part time Uber driving, yes.

Q At the time of the accident that we're here for today that occurred on July 29, 2021, were you doing the same thing in terms of employment?

A At that time, it was COVID. I wasn't doing Uber and I couldn't because of COVID, so I was getting a grant from the government.

MS. FERRARO: Off the record.

(Discussion off the record.)

Q So at the time of the accident, you were not working, is that correct, because

of COVID?

A Yes, uh-huh.

Q Have you ever been convicted or pled guilty to a crime before?

A No.

Q At the time of this accident, did you have a valid driver's license?

A Yes.

Q Was it from the State of New York?

A Yes.

Q On that license, were there any restrictions such as for hearing or seeing?

A No.

Q Do you have to wear glasses or corrective lenses?

A No.

Q I don't know if I asked this question and forgive me if I did. Has your license ever been suspended or revoked?

A As far as I can remember, at least in the last 10 years, no. It may have been suspended for the renewal issue. It was expired and I didn't know, but I doubt it.

Q Was that over 10 years ago if it did happen?
A If it did happen, it was over 10 years, yes. Because I don't know, so that's why.
Q So I'm going to turn your attention to the day of the accident, okay?
A I'll try my best.
Q Do you recall what date that accident occurred?
A "What date"?
Q Yes.
A You mean --
Q The actual date.
A July 29.
Q Of what year?
A 2021, it was.
Q Do you recall the day of the week that it happened?
A I don't remember.
Q Do you recall if it was a weekend or a weekday?
A It must have been weekday.
Q Approximately what time did the

accident happen?
A In the afternoon.
Q What was the weather like at that time?
A A little sunny for the afternoon.
Q And was there any type of precipitation, any type of rain?
A I don't think so.
Q Okay. Were the roads dry?
A They were dry, yes.
Q Where did the accident occur?
A South Broadway intersection of Fourth Street, I believe. Yes, South Broadway and Fourth Street.
Q Is that in Hicksville?
A Yes.
Q And it happened within the intersection?
A Yes. At the intersection, it happened.
Q Now, were you driving a motor vehicle at the time of the accident?
A You mean car?

Q Yes.
A I was driving my van. Yes, I was driving.
Q What type of motor vehicle was it?
A Toyota Sienna, 2011.
Q What color was the Toyota?
A Green.
Q I'm sorry, was that "green"?
A Green, green, yes, green.
Q Did you own that vehicle?
A Yes.
Q Is that an SUV or a sedan?
A Minivan, Toyota Sienna.
Q Was there anyone in the vehicle with you at the time of the accident?
A No.
Q Do you still own the vehicle?
A It's totaled. I mean, no, no, no.
Q Was the vehicle totalled because of this accident?
A Yes.
Q Before the accident happened,

where were you coming from?

A I was coming from home.

Q From the address that you gave me earlier, correct?

A Yes, uh-huh.

Q Had the accident not occurred, what was your immediate destination?

A Go to eat something to eat. My usual time. I get hungry and I go eat.

Q Where was that?

A It is on 107 right opposite the Hicksville Mall, Chipotle Mexican Grill.

MS. FERRARO: Off the record.

(Discussion off the record.)

Q Time-wise, how far of a drive was that from your home, the Chipotle Mexican Grill?

A With traffic or without traffic?

Q Well, you said typically you go there at this time, correct?

A Yes.

Q So, typically, at that time, how

long would it take you to get there?

A Anywhere between 10 to 15 minutes.

Q From the time that you got into your car when you left your home up until the point of the accident, how long did you drive for?

A It's a dead end where I live, so getting out from my home to the main South Broadway, it takes about 40 seconds. Less than one minute.

Q So the question that I asked you and I just want to make sure, from the time that you got into your car up until the point of the accident, how much time passed?

A Not more than two minutes, max.

Q How many vehicles, in total, were involved in this accident?

A Three, including mine.

Q Now, from your home up until the point of the accident, can you tell me what roads you took?

A I live on Thompson Lane, so once I make a right, it is South Broadway and that's

where the intersection, the accident happened.

Q Now, South Broadway in the area of where the accident occurred, is that a one-way or two-way street?

A It is highway, so one-way divider, and the other way is the opposite. I don't know what you call that.

Q In the direction that you were going, how many lanes were there for moving vehicles?

A For moving vehicles, two.

Q Is there a shoulder, as well, or a lane for parking?

A Yes, yes.

Q On the right?

A On the right-hand side, yes. It's a lane for parking. It's like big enough --

MS. FERRARO: He doesn't want you to repeat it.

Q What separates the two-ways of traffic? You said there's a divider. Is that concrete or something else?

A With grass on it. It's pretty

big.

Q Is it, like, an island?

A Island, you can call it, yes.

Q Now, when you first made a right onto South Broadway -- when you first got to South Broadway, which lane did you get into?

A The right-most lane.

Q And did you change lanes at any point from the time that you got onto South Broadway up until the point of the accident or did you remain in the right lane the entire time?

A I remained in the right lane for the entire time because there was traffic, a little traffic. Not too much, but moderate.

Q So there was moderate traffic conditions in the area where the accident occurred?

A Yes.

Q Can you estimate the approximate distance that you traveled in any way you can, miles, meters, whatever you're comfortable with, from the time that you got onto South Broadway up until the time of the accident?

A About .3 miles, .3 miles.
Q Now, the accident happened at the intersection of South Broadway and Fourth Street, correct?
A Yes.
Q Is there any type of traffic device at that intersection?
A You mean the red light camera and stuff?
Q I'm asking you, is there a traffic light there, a stop sign or anything else?
A A traffic light, yes.
Q During that approximate .3 miles you traveled on South Broadway, what was your highest rate of speed?
A Highest what? I cannot hear you.
Q Rate of speed, what was the fastest that you traveled on South Broadway for those .3 miles?
A At that time of the accident? During that time or in general, like, normally?
Q So on the date of the accident,

okay, from the time that you got onto South Broadway up until the point of the accident, what would you say your highest rate of speed was?

A I would say at any given point, less than 30.

Q Now, that traffic light that we discussed at the intersection of South Broadway and Fourth Street, the first time that you saw it that day, how far from the intersection were you?

A I cannot understand the question.

Q Okay.

A So are you saying --

Q I'll ask you again, okay?

A Yes.

Q The first time that you saw the traffic light that day, how far away from it were you? In any way that you can describe it, car lengths, feet, meters, whatever you're comfortable with, I just want to know the first time you actually saw the light for the first time, how far from it were you?

A I saw the light first time after a big truck in front of me passed by enough and I was about, I would say, again, estimate, four, four and-a-half cars away from the truck and then it passes the intersection.

Q So is it safe to say you were four to four and-a-half car lengths away from the intersection when you first saw the traffic light?

A Yes. There was an obstruction in front of me which avoided me to see, and as I mentioned, it was the afternoon --

MS. FERRARO: He's only asking you how far you were from the light when you first saw it.

A About four and-a-half cars.

Q When you first saw the light, what color was it?

A Again, you want to know the color when I first saw it?

Q Yes.

A Not neither red, nor orange, nor green. That is what I saw.

Q Okay. So when you first saw the

traffic light, were any of the lights illuminated?

A As far as I can remember and see, I did not see any light, and whatever glare -- I did not see any light. If you want to go further.

Q Was your vision obstructed in any way?

A I would say slight sunlight, yes, slight sunlight.

Q Was the traffic light, in your opinion, not working or were you not able to see it?

A Okay. To the best of my ability, it was not working, and I had good reason to believe that.

Q What's your reason that you believe that?

A Thank you. Well, at that intersection -- I have lived in this area for at least, I would say, about 18 years. This South Broadway, especially that intersection, it has occasional problems with the light either going blank or blinking orange quite a

bit. Not just one situation, but quite a bit.

I tried very hard to get a hold of whoever is responsible during COVID time and after, as well, but, unfortunately could not get anybody who could get me the real data on when the traffic light misfunctions. This is why I had some confidence saying it was not working.

Q Okay.

A As soon as I saw, I tried to press the brake because there was moving traffic on my left.

Q I'm going to get there. Just answer the questions, okay?

A I don't go beyond that at this point.

Q Alright. The truck that you referred to earlier, was that truck traveling directly in front of you?

A Yes.

Q It was in the right lane?

A In the right lane. Would you like me to elaborate?

Q Sure.

A Okay. Once I made a right and trying to merge into the right-most lane to South Broadway, as I mentioned, it was moderate traffic, so the truck was already there moving a bit and as I was adjusting my speed to that, I give enough room between the big truck and my car, the truck has already -- it was already too close to the intersection, and by that time, as I mentioned, I was about four to four and-a-half cars away.

As soon as I could see the traffic light -- what I could see, as far as I can remember, I did not see any light, and I tried to press on the brake, but it was too late because the next thing I saw -- and also while there was traffic on my left, there was obstruction. I also could not see any traffic coming from the Fourth Street, and that's how the accident happened.

Q The truck that was traveling in front of you at that intersection of Fourth Street, did that truck go straight through the intersection or turn?

A No. It go straight.

Q Was that truck directly in front of you or were there any other vehicles between you and the truck?

A No. It was directly in front of me.

Q When you first saw that traffic light and you were approximately four to four and-a-half car lengths away, what was your speed at that time?

A I would say less than 30 -- about 30.

Q What's the speed limit on South Broadway in that area?

A If I am not mistaken, it's 40. It's 107 highway, if I'm not mistaken.

Q When you were about four to four and-a-half car lengths away, you mentioned there was something to the left of you. Were there vehicles in the left lane, as well?

A Yes. They were also moving and the accident --

Q Let's take it step by step, okay?

A Okay.

Q Now, you look at that traffic light and you're about four to four and-a-half car lengths away and you see that there is no light. What did you do next with respect to the operation of your vehicle, specifically?

A I --

MS. FERRARO: I'm going to object to the form of the question, but, okay.

Q You can answer.

MS. FERRARO: You can answer the question.

A As soon as I saw, I put my foot on the brake, and when I press the brake the accident basically happen. Because it was that speed -- because I needed time I could have -- if I brake hard somebody -- the back traffic would hit me.

So as soon as I got alerted, but because there was a left side obstruction --

MS. FERRARO: I'm sorry. I believe you answered the question.

Q So you started to step on your

brakes when you first saw the light, is that right, the traffic device?

A Yes.

Q What did you slow down to? From the time that you started to slow down up until the point of the accident, did you come to a complete stop?

MS. FERRARO: Objection to the form. Do you understand what he's asking?

A What I understand of this question is that when I pressed the brake, what was my speed limit of the car?

Q Well, what did you -- how about this.

MR. GRGAS: I'll withdraw the question.

Q When the accident happened, at the moment of the impact, a split second before the impact, what was your speed?

A I don't remember. I was too shocked. If I press on the brake, it must be 30 or less, 29, 28. I don't know.

Q From the moment that you saw the

traffic light for the first time up until the point of the accident, how much time passed?

A I'm sorry, can you repeat the question?

Q Yes. So from the time that you first saw that traffic light when you were about four or four and-a-half car lengths away up until the time of the accident, how much time passed?

A It has to be in seconds.

Q Could you estimate approximately how many seconds?

A About three, four. It was less time for me to come to the complete full stop because --

MS. FERRARO: Mr. Malhotra, you answered the question.

Q When the accident occurred, was your vehicle within the intersection?

A It was just -- it just passed the intersection, but it was stopped by the vehicle in the accident.

Q Okay.

A In other words, I could not even

get through half of the intersection before hitting -- so from the red light to the intersection, I would say less than half. That means, I could not even, like, pass the half of the intersection before actually hitting the car.

Q So your car was within the intersection, right?

A Can you repeat the question?

Q I was just asking you earlier if your car was within the intersection when the accident happened?

A The accident exactly happened in the middle of the intersection.

Q Okay, okay. So, now, Fourth Street at that intersection, is that a one-way or a two-way street?

A It's a two-way.

Q How many lanes are there for moving vehicles in each direction?

A On my right-hand side, means coming to South Broadway going north, on the right-hand side, it's Delco Plaza, so there is one lane. On the -- oh, actually one lane here

and one lane there, yes, so one lane each on both sides. There's a yellow divider on both.

Q Now, how many impacts were there to your vehicle, in total, in the accident?

A "How many impacts?"

Q Yes. Was it one collision or more than one?

A Just one, and my car was totaled, at least.

Q Which portion of your vehicle was involved in the accident?

A My driver's side portion.

Q So the left side of your vehicle?

A Hold on. I hit like -- yes, my driver's side left, yes.

Q Okay. The vehicle that was in contact with your vehicle, did you see it at any point prior to the actual impact?

A I did not. Not even for half a second because of the obstruction on the left.

Q What was the obstruction on the left?

A There was another moving -- not

a bigger truck, a smaller. It was high enough for me to not be able to see what was going on on the left-hand side of the traffic.

Q Was it traveling alongside you in the left lane?

A Yes.

Q Did that vehicle also go through the intersection with you?

A I could not tell. All I could tell is as I was -- as I saw the light being no color, I put my -- I step on the brake, and before I knew it, before I could press the entire brake, it was too late. The car was hit, and then after that --

MS. FERRARO: You answered the question.

Q Sir, my question was, if that vehicle that obstructed your view, the truck, was traveling in the intersection with you and your answer was, "I don't know," I believe, correct?

A No, no, it was traveling, yes. It was traveling.

Q So did it go through the

intersection, as well?

A That, I don't remember because the damage had happened.

Q Okay.

A Yes, because I was out of it because I was in the accident.

Q Okay, sir. The vehicle that came into contact with you, did that vehicle come from Fourth Street?

A From the time -- yes, it was coming from the -- that's what I was told, and as I mentioned, I could not see the vehicle because --

Q I'm asking you to answer the question directly. You're making this way longer, okay?

A Okay.

Q I don't need a "because." I'm just asking you if you know if that vehicle came from Fourth Street or not?

A I don't know, but I was told it what was coming from Fourth Street.

Q And you did not see that vehicle at any point before the accident?

A No. I did not.
Q Do you know what portion of that vehicle came in contact with your vehicle?
A Yes. The right tire, the right driver's side tire.
MS. FERRARO: "The right side" or the driver's side?
THE WITNESS: The right side. The left is the driver.
Q So the passenger side?
A The passenger side, yes.
Q The front tire or the rear tire?
A Front, front.
Q One second. I'm sorry.
A Okay.
Q The impact to your vehicle, sir, it wasn't the front of your vehicle? You're saying it was the driver's side of your vehicle?
A As far as I can remember, yes.
Q What portion of the driver's side? Was it toward the front, the middle or the back?
A It was more of the middle

because there was a frame. The frame was hit and got impacted. It was more like the middle.

Q And you're saying the front right passenger side of the other vehicle came into contact with the mid driver's side of your vehicle?

A Yes.

Q Okay. Prior to the impact, did you hear any sounding of any horns?

A Maybe fraction of a second, but it was too late.

Q Who sounded a horn?

A I don't know. One more thing. When the impact happened, my --

MS. FERRARO: There is no open question.

Q Did you hear any screeching of tires prior to the impact?

A Did I hear any what?

Q Tires screeching, brakes or tires screeching right before the impact.

A No. As far as I can remember, no.

Q Okay. Did you have any

indication, whatsoever, that an accident was about to occur before the actual impact happened?

A I did not because of the obstruction on my left.

Q While you were in the intersection, the westbound, that intersection, okay?

A Uh-huh.

Q Was that obstruction to your left? That truck, was it still on your left-hand side?

A After the impact or right before the impact?

Q Before the impact. So, you're traveling through that intersection, traveling through the intersection. You're within it. Is that truck still on your left side?

A Yes.

Q Now, again, about that traffic light. You first saw it four to four and-a-half car lengths away?

A Uh-huh.

Q Did you keep that traffic light

under your constant observation from the first time that you saw it as you were approaching through this intersection?

A My -- to the best that I can remember, as soon as I saw it, I put my leg on the brake and --

Q I'm not asking you what you did with your brake. I'm just asking you if you kept it under your constant observation.

A I did, but after that second there was a glare. I could not clearly see, so my attention went right on the road to protect myself and others.

Q How long did you look at that traffic light for from the first time that you looked at it up until you took your eyes off of it?

MS. FERRARO: Can you repeat that question?

(The last question was read back by the reporter.)

A About a second and-a-half, two seconds.

Q After that time, did you look at

the traffic light at any point again?

A I don't remember because after two seconds after -- that's when --

Q That's all I need to know, one-to-two seconds of looking at the traffic light. During that time it was not working; is that correct?

A It was not working based on what I saw.

Q As a result of that impact that happened to your vehicle, was your vehicle pushed or did it move in any direction?

A I was too shocked to know that.

Q Did you black out or lose consciousness as a result of the accident?

A For the first couple of seconds after the impact, yes. Not lost consciousness, but it was definitely an impact. It was a shock.

Q I just wasn't clear about that answer. Did you actually lose consciousness as a result of the impact? I understand that you were shocked.

A I was shocked and losing

consciousness, yes, as far as I can say.

MS. FERRARO: They are two different things. When you lose consciousness, you're not conscious of anything. Did you lose consciousness or not? It's fine to say that you don't know.

THE WITNESS: No.

Q Can you describe the impact? Was it light, medium, something else?

A It was definitely more than medium.

Q Was it heavy?

A Well, my car dictates so, yes.

Q I'm just asking what you felt, what you experienced.

A I felt that I was pushed back on my neck and my neck was hurting. My attention went to my pain.

MS. FERRARO: He's asking about the force of the impact, not about your pain.

A The force was definitely between medium and heavy.

Q Did you hit your head on anything as a result of the impact?
A The back seat, and I was feeling pain at that time.
Q Now, you state that you don't know what happened to your vehicle immediately following the accident, correct?
A When I got out of the vehicle --
Q That wasn't the question. You don't know immediately what happened to your vehicle following the impact, correct?
A My vehicle went straight into the first tire area, passenger side area of the car.
MR. GRGAS: I'm sorry. Can you repeat that?
(The last answer was read back.)
Q Can you explain what that means, sir?
A It means the front of my car went right inside or hit right inside the passenger side tire of the car in front of me.
Q Alright. Now, earlier you said

that the impact happened to your driver's side of your car.

A And I said in the middle. Yes, driver's side.

Q Okay. Was there another impact to your car after that?

A I don't remember.

Q Now you're saying that the front of your car hit the passenger side of the car in front of you, correct?

A No. Okay. I want to make sure it's clear. I'm saying my car hit the car in front of me. The area of the car in front of me was the passenger side tire, front tire. That's exactly what I said before.

MS. FERRARO: Off the record.

(Discussion off the record.)

Q Did the front of your vehicle come in contact with anything during the time of this accident?

A Other than the car, the car in front, no.

Q Oh, okay.
A I'm sorry. I'm confused.
Q It's okay.
A It seems like I'm confusing you guys, too.
Q No. It's okay. I'm just asking, the front portion of your car, did it come into contact with anything?
A The car in front of me.
MS. FERRARO: Earlier you said the point of impact to your car was the side of your vehicle. Now you're saying it's the front of the your vehicle. So Mr. Grgas is trying to clarify that.
THE WITNESS: I see, okay.
And I also mentioned earlier that the impact was on the middle of the -- the front middle of the vehicle, so I'm sorry about the English.
When I say front, I mean the front, the middle and the driver's side area because that

is where I felt impact. I felt a head-on impact, if that makes sense.

Q Yes. That clarifies it. So I'm clear, the front of your vehicle, the front of your vehicle was involved in this impact, correct?

A Yes. That was the case, yes.

Q What about the driver's side of your vehicle, was that also involved in this impact?

A Okay. I'm not understanding. I want to make sure --

Q I'm going to ask you this. Were any sides of your vehicle involved in the impact?

A Neither side, nor driver's side, nor passenger's side, and even before when I said the driver's side, that doesn't mean -- I'm sorry, I'm bad.

I mean to say, if you show the front bumper area -- if you want to divide it into areas, so the left -- the impact that I felt, I felt in the front area from my driver

left side up to the middle or even a little bit more was impacted. It wasn't on -- directly on the left side or even on the right side. It was about in the front, and since I could not see, based on what I remember, it was, to me, it was a head-on collision.

Q Okay. Thank you. Just so we're clear now because there was some confusion, and thank you for the clarification, your front and the passenger side of that other vehicle were in contact, correct?

A I'm sorry, my what -- yes, my front.

MS. FERRARO: I think that's a mischaracterization. I think he said the front of the other car toward the passenger side.

Q Let's just go over that now. So we're clear now, which portion of that other vehicle was involved in the impact?

A Right passenger side tire area.

Q Okay.

MS. FERRARO: When you say

the "tire area," was it the front of that car or the side of the car?

THE WITNESS: What I can remember, once I got out and got a look at it, the tire was tilted, so that is what I remember. Sorry. It's almost three years ago.

Q That's fine. Did any air bags deploy in your vehicle as a result of the impact?

A Yes.

Q Was it your front air bags that deployed, your side, something else? Which air bags?

A Yes, front.

Q When your vehicle came to a rest following the accident, where was it? Was it right in the intersection?

A Somewhere in the intersection.

Q Was it in the middle of the intersection?

A I'm sorry?

Q Was it in the middle of the intersection?

A I would not know. I wouldn't know. I was too shocked to notice that.

Q Was your vehicle still within that right lane of travel when your vehicle came to a rest?

A I think it was a little tilted because it happened -- like I was going this way (indicating.)

Q We can't take body gestures or hand motions. You have to say it by using words. Which way was it tilted, a little bit to your right or a little bit to your left?

A I would say, if I have to guess --

MS. FERRARO: No, we don't want you to guess.

A I don't remember. Yeah, I don't remember.

Q Following the impact, was your vehicle and that other vehicle still in contact with each other?

A I don't know. I don't remember.

Q Now, you said there was a third vehicle involved in this accident. Did you see the impact with that third vehicle?

A I got to see a glimpse of it, yes.

Q What did you see?

A A little bit of the bumper bent.

Q In terms of how that third vehicle was involved in this accident, did you see what happened?

A I did not get a chance to see that.

Q That impact with the third vehicle, did that involve your vehicle or the other vehicle?

A The other vehicle.

Q So the two other vehicles, they were in contact with one another, correct?

A Uh-huh.

Q Yes?

A Yes, yes.

Q That other impact, that second impact, did that happen before your accident or after?

A I wouldn't know.
Q Okay.
A I wouldn't know. I was too busy with my accident and shock.
Q That's fine. At any point following the accident, did you exit your vehicle?
A After a couple of minutes, I exit the vehicle, yes.
Q And what did you do after exiting your vehicle?
A One guy came and asked me, "Are you okay," and I said, "I don't know," and then I got out. I was feeling neck pain from the impact, and I got out, and I saw the car in front of me, and then I saw my car, and I got into sadness.
Q Okay. Were you able to see the damage to your vehicle as a result of the accident?
A I saw it. All I remember, that one side, one side -- again, not side. I mean the front, the front. Let me make sure. The front of the car. One side was completely

inside -- to make it more clear, the head-on -- it was like --

Q Pushed in?

A Pushed in, yes, pushed in quite a bit. As I mentioned, to the front, middle and that side was pushed in.

Q Did you see the damage to the vehicle that you were in contact with?

A I got a little glimpse, yes.

Q Could you describe that vehicle in any way?

A It was white.

Q Was it a car, an SUV or something else?

A Mid-sized SUV.

Q And what damage did you have a glimpse of?

A I saw the tire was definitely tilted. Maybe, again, if I'm not mistaken, I recall the tire, whatever holds the tire.

Q The axle or shock absorber?

A I'm not sure -- either/or. I saw the tire was tilted at a -- in a non-normal way is what I saw.

Q I understand. Thank you. The third vehicle, can you describe that vehicle in any way?

A I believe it was color silver and the bumper, some bumper was hit.

Q The front bumper or rear bumper?

A No. The front, front because it was from the opposite direction of the white car.

Q Did you see the driver of the white car?

A I saw the driver, yes.

Q Can you describe the driver; male, female?

A Female. It was female, and I remember asking her, "Are you okay?" She did not reply. She was on the phone.

Q Can you describe her in any other way besides being female?

A About, like, middle-age, about like mid 40s and not -- I mean, she did not get out until ambulance came, so just normal, like Indian. I know she was Indian, yeah.

Q Now, you say that other vehicle

was traveling in the opposite direction of the white SUV before the accident?

A Yes.

Q Now, when you saw the white SUV following the accident, where was it in relation to your vehicle?

A Can you explain again?

Q When you exited your vehicle and you're in the intersection, correct?

A (Nodding.)

Q What was that? Was that a yes? You have to say your answer.

A I'm sorry, you were cutting off.

Q You nodded. I need yes or no.

A I didn't understand your question because you were cutting off.

Q When you exited your vehicle following the accident, you were still in the intersection, yes?

A Uh-huh.

Q You have to say yes.

A Yes, sorry.

Q Where was the other vehicle, the white SUV? Where was that in relation to your

vehicle?

A It was pushed back further due to the impact.

Q But where was it?

A My direction on the right-hand side like from me. From my car, it was pushed to the right side of its right side and further, so front and right.

Q And the third vehicle, the silver vehicle, where was it, or did you not see it when you exited your vehicle?

A It was, what I remember, the white vehicle was -- after the impact, what I remember is the white vehicle was more -- because of the impact, it was more pushed further and towards my right, and the left vehicle was slightly outside -- slightly in the intersection. That is what I remember seeing.

Q Did you see the driver of that vehicle?

A I'm sorry?

Q Did you see the driver?

A Of the silver or the white?

Q The driver of the silver

vehicle.

A I believe she was a lady.

Q The driver of the white vehicle, the Indian woman that you described, did you have any conversation with her?

A As I mentioned, I asked, "Are you okay," and she did not reply. She was on the phone. After that, I spoke to the driver that came to help, and then the cops came, and that was it.

Q Did you speak to the driver of the third vehicle, the silver vehicle?

A To her, if I remember, no.

Q Are you aware of the names of any witnesses to this accident?

A No.

Q While you were at the accident scene following the accident, were you able to look at the traffic light?

A I could not, no. I was too shocked and sad about the car and the whole accident.

Q Okay. How long did it take for the police to arrive?

A I don't remember.
Q Did you speak with them?
A Yes.
Q Did they ask you how the accident occurred?
A Yes. They asked me.
Q Did you tell the police about how the accident occurred?
A I tried my best, to the best of my ability to tell them the same thing that I told you, but what I felt, either I could not articulate at that time or they did not want to hear me. They heard the other two who were involved in the accident.
Q I want to ask you specifically what you told the police.
A The police asked me, "Are you okay," and I said, "I think I'm okay."
Q About how the accident occurred, what did you tell them about how the accident occurred?
A I tell them, the first thing I notice is that there was traffic on my left, and as I was approaching the first thing that I

could see was them, and the light was not working is what I could see the glimpse of.

Q So you told the police that the light wasn't working?

A Yes. I did tell them.

Q Did they respond to that in any way?

A He told me after talking to the other two -- I don't know what the two people are saying -- they had green light, "So yours must be red." That's all I got, and then the police officer went inside the restaurant to see if they could find any video to clarify, and, in fact, I also requested them, "Can you please go and get the video?"

They came back and I did not get any clearance, and before I could say anything, as far as I can remember, he handed me a paper saying, "I don't know what you're talking about, but the other two people are saying that they had green light and also have a witness."

Q During that time, did you try to look at the traffic light to see if it was working?

A Can you hold on one second, please?

MS. FERRARO: There's an open question. Please answer it before you --

A I could not hear your question, please.

Q During the time that you were explaining to the police that the light wasn't working, did you look at the light to see if it was working?

A As I mentioned, I did not get a chance to look at the light. I was too shocked.

Q Do you need to take a break for any reason right now?

A Yes, please.

MS. FERRARO: Let's take a break.

(A short recess was taken at this time.)

Q So the police told you that the other two said they had a green light?

A Yes. That's what he said. He

said -- the other two -- I remember his words vaguely. Of course, it was three years ago. He said, "The other two are saying it was green, so two people against one," and I said, "Can you please check to the restaurant if they have any camera," so he said, "Okay, I will go."

He went inside and I don't know what they said, and after that he got busy, and then, you know, he came to me after talking to those two, and he said, "I don't know what to tell you, what you're telling me, but those people are telling me they both had green light and one of the witness is telling me that you had red light."

Q Did you ever get the name of this witness?

A No.

Q Do you know which witness they were talking about?

A No.

Q Are you aware of any videos available of this accident?

A I wish there was. I was

actually trying very hard to pick up the glitch because that occasionally happens at that intersection. I could not. I had one instance, but it was too late. I could not get the camera out and pick that up.

Q Did you take any photographs at the scene of the accident?

A At that time I probably did, yes.

Q Do you still have those photographs?

A I could look it up. I could try.

Q If you do have them, I ask that you don't delete them, okay?

A Okay.

Q Just save them.

A I will.

MR. GRGAS: And I'll just ask for the production of those photographs if they haven't already been provided.

Q Were any tickets issued at the accident scene by the police?

A No.
Q Was your vehicle towed from the accident scene?
A Yes.
Q The roadway that you were traveling on, was it level, or was it on an incline, or decline?
A (No response.)
Q If you know.
A I don't know. It was pretty level, but could be a decline or incline.
Q Did it curve to the right or was it straight?
A Mostly straight, mostly straight.
Q Okay. Thank you. I have no further questions. Thank you for your time.
MR. GRGAS: I'm just going to call the other attorney that is going to handle the other deposition.
MS. FERRARO: Mr. Malhotra, you're done.
(Time noted: 11:22 A.M.)

STATE OF NEW YORK)
) SS:
COUNTY OF)

I have read the foregoing record of my testimony taken at the time and place noted in the heading hereof and I do hereby acknowledge it to be a true and correct transcript of same.

AMIT MALHOTRA

Subscribed and sworn to
before me this day
of , 2024.

NOTARY PUBLIC

* * *

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Amit Malhotra	Mr. Grgas	7

* * *

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* * *

C E R T I F I C A T E

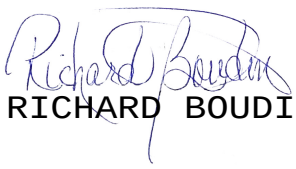
STATE OF NEW YORK)
) SS:
COUNTY OF NASSAU)

I, RICHARD BOUDIN, a Shorthand Reporter and Notary Public of the State of New York, do hereby certify:

That the witness whose testimony is hereinbefore set forth, was duly sworn or affirmed by me, and the foregoing transcript is a true record of the testimony given by such witness.

I further certify that I am not related to any of the parties to this action by blood or marriage, and that I am in no way interested in the outcome of this matter.

IN WITNESS WHEREOF, I have hereunto set my hand this 26th day of May, 2024.



RICHARD BOUDIN

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